



Employee Handbook

员工手册

SIEMENS



目录

Table of contents

第一章：员工雇佣政策总则 **General Employment Policy**7

第一节：雇佣管理 **Employment Management** 7

- 1.1. 劳动关系的建立 Commencement of Employment..... 7
- 1.2. 试用期 Probationary Period 7
- 1.3. 公司职位空缺 Job Vacancy in the Company..... 8
- 1.4. 职位变更 Change of Job Position 9
- 1.5. 个人资料变更 Change in Personal Data 10

第二节：工作地点 **Place of Work** 11

第三节：其他雇佣政策 **Miscellaneous**..... 11

- 3.1. 个人信息 Personal Data 11
- 3.2. 骚扰 Harassment 12
- 3.3. 毒品和酗酒 Drug and Alcohol Policy..... 14
- 3.4. 吸烟政策 Smoking Policy..... 14
- 3.5. 公开声明 Public Statements..... 14

第四节：员工行为规范 **Employee Code of Conduct** 15

- 4.1. 合规与商业行为准则 Compliance and Business Conduct Guidelines 15
- 4.2. 保密义务 Confidential Obligation 16
- 4.3. 安全 Safety 16
- 4.4. 员工行为准则 Employee Code of Conduct 17
- 4.5. 个人计算机软件 Personal Computer Software..... 19
- 4.6. 因特网和电子邮件的使用 Use of Internet and Email 19
- 4.7. 个人电话 Personal Telephone Calls..... 19

4.8. 员工形象和公司形象 Employee's Image and Ours	20
第五节：劳动关系结束 Termination	20
5.1. 辞职 Resignation	20
5.2. 劳动合同终止 Ending of Employment Contract	21
5.3. 立即解雇 Summary Termination	21
5.4. 离职手续 Check out Procedure	21
第六节：劳动纪律和处罚措施 Labor Discipline and Disciplinary Actions	21
6.1. 处罚措施和程序 Disciplinary Actions and Procedures	22
6.2. 非正式警告 Informal Warning.....	25
6.3. 正式警告 Formal Warning.....	25
6.4. 立即解雇 Immediate Termination.....	28
第七节：社会保险及住房公积金 Social Security and Public Housing Fund.....	34
第八节：创新员工的奖励与报酬 Reward and Remuneration for Inventors.....	34
第二章：附件 Annex	34
第一节：薪酬结构 Compensation Structure.....	34
第二节：公司福利 Company Benefits	36
第三节：休假 Leave Benefits.....	37
3.1. 公共和法定节假日 Public and Statutory Holidays.....	37
3.2. 带薪年假 Paid Annual Leave	37
3.3. 特殊休假 Special Leaves	39
3.4. 病假 Sick/Medical Leave	39
3.5. 请假/请假记录 Application for Leave/Leave Record	40
第四节：工作时间/加班 Working Hours / Overtime	41
第五节：员工绩效和发展 Employee Performance & Development	42

第六节：出差 Business Travel	44
第七节：政策发布 Publication of Policies	44
第八节：相关政策和制度网站 Relevant Links to Rules & Regulations	45

本手册旨在向您（“员工”）提供有关公司政策、流程和劳动条件的信息。本手册适用于西门子（中国）有限公司、西门子财务租赁有限公司、西门子商业保理有限公司、西门子财务服务有限责任公司、西门子国际贸易（上海）有限公司及其分公司（以下均称为“公司”）。对于本手册未述及的事项以及随时间推移出现与相关法律法规相违背的事项，一律以相关法律法规为准。

This Employee Handbook is designed to provide you (“**Employee**”) with information about some of the Company’s policies, procedures and working conditions. This handbook is applicable to Siemens Ltd. China, Siemens Finance and Leasing Ltd., Siemens Commercial Factoring Ltd., Siemens Financial Services Ltd., Siemens International Trading Ltd. Shanghai, and their branch offices (hereinafter collectively referred to as the “**Company**”). For matters not covered herein, and contents hereof which with the passage of time come into conflict with the related laws and regulations, the relevant laws and regulations shall govern.

本手册无法对公司政策的各个细节和可能出现的问题一一作出规定，因此员工在任何时候都应当遵从诚实信用的原则并采取一个理性成年人的正常的行为准则，特别是员工应当遵守基本的劳动义务（包括忠实义务和勤勉义务等）。同时，随着公司的进一步发展，公司可能需要对本手册中规定的公司政策进行修改。因此，公司保留根据法律规定随时修订、增补或废除本手册中任何政策或条款的权利。

This Handbook cannot anticipate every circumstance or question about the Company’s policies, therefore it is expected that the employees will at all times adopt the normal code of conduct of a rational adult based on the principle of good faith and in the spirit of the Company’s core values, in particular, the employees shall abide by the fundamental obligation of the employees including the loyalty obligation and diligence obligation. At the same time, as the Company continues to grow, the need may arise to change the policies described in this Handbook. The Company therefore reserves the right to revise, supplement or rescind any policy or provision of this Handbook from time to time in accordance with the law.

在本手册中，含有男性意思的词汇同样适用于女性，含有单数意思的词汇同样适用于复数，反之亦然。

In this Handbook, words importing the masculine gender shall include the feminine and words in the singular include the plural, and vice versa.

Our values

Responsible – Committed to ethical and responsible actions

Excellent – Achieving high performance and excellent results

Innovative – Being innovative to create sustainable value

我们的价值观

勇担责任——致力于符合道德规范的、负责任的行为

追求卓越——取得卓越的业绩和运营成果

矢志创新——敢于创新，创造可持续的价值



第一章：员工雇佣政策总则

Chapter 1: General Employment Policy

第一节：雇佣管理

Section 1: Employment Management

1.1. 劳动关系的建立 Commencement of Employment

公司的所有新员工均应当通过公司的选拔程序，必须符合招聘岗位的各项要求。应聘者正式加入公司前，必须根据公司要求在公司指定的医疗机构进行体检。对于体检不合格者，公司将不予雇佣。

All new employees of the Company are subject to the Company's selection procedure and must meet the requirements of the position applied for. An applicant must undergo a medical examination according to Company request in a medical institution designated by the Company before formally joining the Company. The Company will not hire persons who fail the medical examination.

雇佣外籍人员时，外籍人员应当获得有效工作许可证、签证、居留许可（由相关政府机构颁发）。

The employment of foreign nationals shall be subject to the candidate obtaining the valid work permit, visa and residence permit from the relevant government.

公司应与员工签订劳动合同。

An employment contract shall be entered into if an applicant is hired by the Company.

1.2. 试用期 Probationary Period

公司的新员工需经过一定的试用期，该试用期的期限将在员工的劳动合同中按照《中华人民共和国劳动合同法》相关规定进行约定。在试用期结束之前，员工的主管需评估员工的表现，决定是否符合录用条件，并将评估结果通知员工。如果员工在试用期内离职，公司将不发放任何奖金。

New employees of the Company are required to serve a probationary period of certain months set forth in their individual employment contracts in accordance with *the Labor Contract Law of the People's Republic of China*. Before the end of the probation period, the employee's supervisor shall assess his/her performance, determine whether the employee has met the recruitment conditions, and inform the employee of the assessment result. If an employee leaves Siemens during their probation period, they will not be entitled to any incentive payment.

员工具有下列情形的，均被视为不符合录用条件，公司可以解除劳动合同：

An employee will be deemed having failed to meet the recruitment conditions and the Company will be entitled to terminate his/her employment contract, if he/she:

- 1) 被证明不符合岗位要求，如无法按照要求完成公司分配的工作内容或工作指标的；
is proven incompetent for his/her position, such as unable to accomplish work or achieve performance targets assigned by the Company;
- 2) 在招聘过程中向公司提供虚假信息的（包括但不限于列示在简历上的信息或面试期间向公司提供的信息）；
has provided false information in the recruitment process, including but not limited to the information stated on his/her resume or provided during the interviews with the Company;
- 3) 在订立劳动合同过程中有欺骗、隐瞒或其它不诚实行为的；
used such means as deception, concealment, or dishonesty to conclude an employment contract;
- 4) 不具备政府规定的就业手续的；
failed to fulfill any employment formalities as required by the government;
- 5) 公司的背景调查显示在前雇主的雇佣过程中存在不符合公司道德和行为标准的行为，即使该行为可能没有导致纪律处分；
revealed conduct that did not conform to the company's standards of ethics and code of conduct during the employment of the previous employer by the background check of the Company, even though the conduct may not have resulted in disciplinary action;
- 6) 不符合岗位其它特殊要求，如《新员工融入计划》中的要求（若适用）；
failed to meet other special requirements of his/her position, such as those requirements specified in *Integration Plan for New Employee*, if applicable;
- 7) 未与其它实体解除劳动关系的，或无法提供公司办理录用或社会保险登记所需要的文件证明的；
has not terminated the employment relationship with any other entities or failed to provide the documents required by the Company for employment procedure or social insurance registration;
- 8) 根据与前雇主签订的竞业限制协议受到竞业限制的约束，或与第三方之间存在未解决的劳动纠纷的；
is being subject to a non-competition restriction under a non-compete agreement entered into with his/her prior employers or has a labor dispute with a third party that has not been settled;
- 9) 曾经被公司或西门子其他关联公司以违纪为由解雇的；
has been dismissed by the Company or other affiliated companies of Siemens for violation of discipline;
- 10) 存在不满足劳动合同及公司规章制度中规定的其它情形的。
falls under other circumstances set forth in his/her employment contract and the rules and regulations of the Company.

1.3. 公司职位空缺 Job Vacancy in the Company

当公司职位出现空缺情况时，公司将通过公司内部网站/互联网或其他媒体公布招聘信

息。当内部求职者和外部求职者具有同等资历时，内部求职者将被优先录用。

The Company will advertise job vacancies via Intranet/Internet or other media when there are vacancies available within the Company. Selection priority will be given to an internal applicant when he/she has the same qualifications as that of an external applicant.

1.4. 职位变更 Change of Job Position

公司有权根据经营需要、政策调整、业务变化、组织架构改革等，以及员工的工作能力、工作表现、工作态度及健康状况等，对员工的工作岗位、工作内容等进行调整。具体情形包括但不限于：

The Company has the right to adjust its employees' work positions and work contents according to operation requirements, policy adjustment, business change, organizational structure reform etc., as well as their work ability, performance, work attitude and health condition etc.. The specific circumstances include but are not limited to:

- 1) 因公司的商业经营需要，员工所在部门或单位已被裁撤的；
the department or unit for which the employee works has been dissolved due to the business operation needs of the Company;
- 2) 因公司生产/经营任务减少，导致员工所在部门或单位的生产/经营任务同时减少的，或公司经营情况发生变化确需调整员工岗位的；
the decrease in the production/operation task of the Company has resulted in the reduction of the production/operation of the business department or unit which the employee works for, or the change of the Company's operation does need to change or adjust employee's job position;
- 3) 因员工身体原因，不能或不适合从事当前岗位工作的；
the employee is unable/unfit for his/her current job due to his/her poor health;
- 4) 因员工缺乏工作能力及工作业绩不佳等原因，已不能胜任当前岗位工作；
the employee is incompetent for his/her current job due to his/her lack of capacity, poor work performance, etc.;
- 5) 因员工的日常表现、职业操守、遵纪守法方面的原因，已不适宜担任当前职务的；
the employee is no longer suitable for the current position due to his/her daily performance, professional ethics, discipline and compliance;
- 6) 员工继续从事当前岗位工作将产生实际或潜在利益冲突；
an actual or potential conflict of interest will arise if the employee continues to work in the current position;
- 7) 其他因公司商业经营需要、机构调整或风险防控原因等所引起员工职位调整的。
other position adjustments caused by the company's business operation needs, organization adjustment or risk prevention and control reasons etc..

公司依照上述规定依法合理调整员工职位的，应以书面形式通知员工。员工应服从通知中指明的调整。员工岗位依据上述情形发生调整的，公司有权相应调整员工的薪酬福利。

Any change or adjustment of an employee's job position by the Company should be carried out in a reasonable manner pursuant to the law, and the employee should be notified in writing. The employee shall obey such arrangement by the Company. If the employee's job position has been changed or adjusted according to the above circumstances, the Company shall have the right to correspondingly adjust his/her remuneration and benefits.

上述情形之外，在征得员工同意后，公司可以将员工转至其它部门、业务单位、分支机构或公司地区代表处工作。

Apart from the above-mentioned circumstances, with the consent of the affected employee, the Company may transfer the employee to another department, business unit, branch or regional representative office of the Company.

1.5. 个人资料变更 **Change in Personal Data**

为确保所有员工的个人记录被及时更新，所有员工必须将其个人资料有关的变更及时通知公司，其中包括：

To ensure that the personal records of all employees are updated in a timely manner, all employees are required to promptly notify the Company of any changes related to their personal information, including:

- 婚姻状况和配偶的详细情况
marital status and spouse's particulars
- 详细的家庭住址和联系电话
address and telephone number
- 子女出生信息
birth of any child
- 学历/学位等信息的变更
education update

员工应当确保其提供的信息真实、准确、完整。在通知公司信息变更时，请员工一并将相应证明文件的复印件附上。若员工未及时提供相关变更信息，员工应自行承担由此造成的后果。

Employees shall ensure the authenticity, accuracy and completeness of all information provided. Employees are also required to furnish relevant copies of documentary evidence where applicable, in support of such changes. In case that an employee fails to provide relevant information on the above changes, if any, the employee shall bear any resulting consequences.

公司向员工提供的地址（包括但不限于家庭住址、户口所在地址、常住地址、个人邮箱等）发送有关文件和材料，应视为公司已经向员工成功送达。

If the Company delivers the relevant files and materials to the address provided by the employee including but not limited to home address, hukou address, habitual residence address

and the private email account etc., such delivery shall be deemed as the successful delivery to the employee.

第二节：工作地点

Section 2: Place of Work

员工的正常工作地点将在职位聘任书/劳动合同中加以指定。在合理情况下，公司可事先向员工发出通知，要求员工在公司指定的其它地点工作。因工作需要，公司还可以要求员工在中国境内外出差。

An employee's normal place of work will be as specified in his/her letter of appointment or employment contract. The Company may, by giving the employee reasonable notice; require him/her to carry out his/her duties at such other place as the Company shall specify. In the performance of the employee's duties the employee may also be required to travel throughout and outside of China.

公司可以借调方式，要求员工在公司下属的任何一个附属公司或关联公司内工作。

The Company may require the employee to work at any associated company or affiliate of the Company, on a secondment basis.

第三节：其他雇佣政策

Section 3: Miscellaneous

3.1. 个人信息 Personal Data

根据《中华人民共和国个人信息保护法》及其他与个人信息保护相关的法律法规，为订立、履行员工个人作为一方当事人的劳动合同所必需以及实施人力资源管理所必需，公司将在法律框架内以收集、存储、使用、加工、传输、提供、删除等方式处理员工的个人信息（包括但不限于金融账号、医疗健康记录等敏感个人信息），并承担与此相关的责任。

According to *Personal Information Protection Law of the People's Republic of China* and other laws and regulations related to personal information protection, for the purpose of necessary to conclude or fulfil the employment contract with the employee and of necessary to conduct human resources management, the Company will process the employee's personal information (including but not limited to financial accounts, medical and health records and other sensitive personal information) by collection, storage, use, refinery, transfer, provision, and deletion within the legal framework and assume the related responsibilities.

基于上述之目的，公司可以将员工的个人信息转移给公司的关联公司、律师、审计师和其它服务提供商等。此外，考虑到公司全球化运营的背景，基于集团全球统一的人力资源管理之所必需，您的个人信息将可能传输到境外，提供给西门子集团不同实体，以及可能会进一步委托境外服务提供商和商业合作伙伴处理您的个人信息。公司

将采取必要的技术和管理措施确保境外接收方为您的个人信息提供符合中国数据保护法法律及当地个人信息保护法律要求的保护。

For this purpose, the Company may transfer the personal information of employees to the Company's affiliates, lawyers, auditors and other service providers, etc. In addition, in view of the global operation of the Company, your personal information may be transferred overseas to different entities of Siemens and may be further entrusted to overseas service providers and business partners to process your personal information as necessary for the global unified human resources management of the Group. The Company will take necessary technical and management measures to ensure that the overseas recipient provides your personal information with protection in accordance with the Chinese data protection law and the local personal information protection law.

公司对于员工个人信息的处理目的、处理的个人信息种类、处理方式、保存期限、保护措施、员工行使相关权利的方式和程序等详细内容请见《西门子员工隐私通知》。

The purpose of personal information handling, the categories of handled personal information, the handling methods, the retention period, the security measures, the methods and procedures for employees to exercise their relevant rights, etc. are described in *Siemens Employee Private Notice*.

公司将采取所有必要可行的措施，确保个人信息的安全性，避免任何人在未经授权的情况下获得或使用员工个人信息。

The Company will take all necessary practicable steps to ensure security of the personal data and to avoid unauthorized access or use of such personal data.

3.2. 骚扰 Harassment

在工作场所内或在与工作相关的任何场合，公司决不姑息以言语、文字、图像、肢体行为等任何形式存在的针对任何个人或群体的骚扰（包括性骚扰）或其他任何形式的侵犯、侮辱或不当行为。

In the workplace or on any occasion related to the work, the Company will not tolerate any harassment (including sexual harassment) or any other form of aggression, insult or misconduct against any individual or group in the form of words, words, images, physical behavior or any other form.

我们无法列出构成骚扰行为的所有情形，但以下示例将视为构成对他人的骚扰（包括性骚扰）行为：

We cannot list all the circumstances that constitute harassment, but the following examples will be deemed to constitute harassment (including sexual harassment) of others:

- 发表侮辱、诽谤性言论，使用令人反感或具有性含义的语言进行戏弄、调侃或玩笑，包括使用任何工作系统或社交媒体对他人进行文字上的骚扰；
making an insulting, defamatory statement, teasing, teasing, or joking using language that

is offensive or has sexual connotations, including using any work system or social media to literally harass another person;

- 不必要和不恰当的身体接触，或不受欢迎的凝视、口哨、姿势或暗示性或侮辱性的动作；
unnecessary and inappropriate physical contact, or unwelcome stares, whistles, gestures, or suggestive or insulting movements;
- 违反公序良俗或在他人明确表示拒绝或以其他方式表达拒绝意愿后仍持续进行示爱，提出约会、恋爱的要求或追求，或要求别人参加社交活动；
violating public order and good morals or continuing to show love, make a date, love request or pursuit, or ask others to participate in social activities, even after the other person has clearly expressed his/her refusal or otherwise expressed his/her refusal;
- 明示或暗示要求服从某项与工作无关的指示或做出某项与工作无关的行为，如陪酒、或提出性好处可能会促进或阻碍职业发展等；
explicit or implied request to obey a non-work related instruction or to perform a non-work related behavior, such as accompanying someone for a drink or offering sexual favors that may promote or hinder career development etc.;
- 发送或展示具有性暗示或令他人反感的图片或材料；
sending or displaying images or materials that are sexually suggestive or offensive to others;
- 发表有关个人因素（如肤色、种族或社会出身、宗教、年龄、残障状况、性身份、世界观或性别）的贬低或偏见性言论等；
making disparaging or prejudiced remarks about personal factors such as skin color, racial or social origin, religion, age, disability, sexual identity, world view or gender;
- 其他营造胁迫、恶意或攻击性工作环境的干扰行为。
other disruptive behaviors that make coercive, malicious or aggressive work environment.

请理解不能假设所有人与自己的主观感受相同，要尊重和理解别人的感受，即使某些语言和行为他人不是针对的对象，他人也有可能觉得受到了冒犯或不受欢迎。

Please understand that you cannot assume that everyone has the same subjective feelings as you do, respect and understand the feelings of others, even if some words and actions are not intended for them, they may feel offended or unwelcome.

如果员工认为自己或知晓他人受到了任何形式的骚扰、歧视、报复事件或公司政策禁止的任何其他行为，可向 Tell us 投诉。所有被举报的骚扰投诉将予以调查。该事项将尽可能地出于保护当事人隐私考虑，以保密的形式处理。

The employee may complain to Tell Us if he/she suppose or know that others have been subjected to any form of harassment, discrimination, retaliation, or any other behaviors prohibited by the Company's policies. All reported complaints of harassment will be investigated. The matter will be handled confidentially to the extent possible to protect the privacy of the parties concerned.

公司禁止对任何举报人员、调查人员进行打击报复，即使经过调查所举报的问题并没有得到证实。公司亦禁止任何欺诈、不诚实或其他意在攻击他人而滥用举报的行为。

The Company is prohibited from retaliating against any informant or investigator, even if the reported problem has not been verified after investigation. The Company also forbids any fraud, dishonesty or other misuse of reports intended to attack others.

3.3. 毒品和酗酒 Drug and Alcohol Policy

为提高生产力、保障公司员工和客户的健康和安全，公司制定了关于毒品和酗酒的政策。在工作期间（包括用餐期间、休息期间和待命期间）、驾驶公司车辆期间、因工驾驶任何车辆期间，公司明确禁止：

The Company has adopted a drug and alcohol policy, the purpose of which is to promote productivity, enhance the health and safety of each employee, his or her co-workers, and that of its customers. The Company expressly prohibits its employees, while working (including meal periods, break periods and standby time) or while driving the Company's vehicle, or while driving any vehicle on the Company's business, from:

- 员工在酒精、酒精类饮品或毒品、未依照处方获得的精神药品、麻醉药物的影响下工作，以确保员工的工作安全和工作效率。
working under the influence of alcohol, alcoholic beverages or drugs, psychotropic substances not obtained by prescription, or narcotics, to ensure the safety and efficiency of employees.
- 员工拥有、携带、使用毒品或酒精、酒精类饮品、未依照处方获得的精神药品、非法药物、麻醉药物，或向其他员工或其他任何人销售、赠送上述物品。
having, possessing or using drugs or alcohol, alcoholic beverages, psychotropic substances not obtained by prescription, intoxicants, or narcotics, or selling, giving such substances to other employees or to anyone else.

3.4. 吸烟政策 Smoking Policy

公司除指定吸烟区外，其它任何地方都属于禁止吸烟的范围。

Smoking is forbidden in any areas of the Company except the designated smoking area.

吸烟者在离开吸烟区时需确保烟蒂处于完全熄灭状态并扔入专用垃圾桶内。

Smokers should make sure their butts are completely extinguished before leaving the smoking area and put them in a special trash can.

3.5. 公开声明 Public Statements

未经公司批准，员工不得就公司政策和业务以口头或书面形式发表公开声明或媒体声明。欲了解详细情况，请参见公司的信息发布规定。

Employees are not allowed to make public or press statements on Company policies/business orally or in writing without the approval of the Company. For details, please refer to the relevant Company regulations.

第四节：员工行为规范

Section 4: Employee Code of Conduct

4.1. 合规与商业行为准则 Compliance and Business Conduct Guidelines

- 1) 敬业和合作精神：所有员工在任何时候都要将实现公司的最大利益作为自己的行为准则。员工的行为不能对公司的良好声誉和工作氛围产生不利影响。而且，所有员工必须遵守公司的规章制度。相互尊重和信任是员工与公司之间工作关系的基石。

Loyalty to the Company and cooperation: the behavior of all employees should at all times be in the best interest of the Company. It must not affect the high standing of the Company or spoil the working atmosphere. Further, it shall be in compliance with the Company's rules and regulations. The working relationships between the employee and the Company must be based on mutual respect and trust.

- 2) 员工应努力履行自己的职责以及上级管理人员交给的其他任务。公司倡导员工之间的合作与相互支持。员工应该以礼貌和合作的态度对待同事及来访者。

The employee shall perform his/her duties and duties related matters with the good care of a prudent administrator and use his/her best efforts. The Company also expects a readiness for co-operation and mutual support. The employee shall be polite and cooperative both towards colleagues and visitors.

- 3) 员工应在第一时间以信任的态度与其相关主管或合作的同事就发生在工作中的任何问题进行讨论，不可在与内部员工及主管沟通前向公司以外的任何人发布或讨论这些问题。

The employee shall truthfully discuss with his/her relevant supervisor or cooperative colleagues any problems occurring within his/her work environment before contacting anybody outside the Company.

- 4) 《西门子商业行为准则》是公司的重要政策。公司战略决策和日常业务都必须基于该准则所确立的道德和法律标准。所有员工在任何时候都必须严格遵守，践行公司所倡导的价值观和基本原则。每位员工都将收到《西门子商业行为准则》。

Siemens Business Conduct Guidelines is one of the important policies of the Company. Both our strategic consideration and our day-to-day business must always be based on the ethical and legal standards defined in the Business Conduct Guidelines. The globally binding rules are applicable to every employee at any time. All employees must strictly abide by and practice the values and fundamental principles always advocated by the Company. The employee will receive Siemens Business Conduct Guidelines.

- 5) 员工必须了解并遵守所在国家/地区的法律法规，遵守职业道德，恪守社会公德。公司禁止任何形式的暴力、骚扰和违反法律、公序良俗和伦理道德的行为。

The employee must understand and abide by the laws and regulations of the country/region where they are located, abide by professional ethics and social ethics. The Company prohibits any form of violence, harassment and conduct that violates the law, public order, good morals and ethics.

- 6) 违反《西门子商业行为准则》的行为，将按照相关规定和程序进行处罚，详见处罚细则。

Those who break *Siemens Business Conduct Guidelines* should be handled according to the Disciplinary procedures of the Company. For more details, please refer to the Disciplinary rules herein.

4.2. 保密义务 Confidential Obligation

员工有义务对其在雇佣期间获得的或为了完成工作而被告知的任何或全部信息和数据进行保密，比如：商业机密、客户名单、保密工艺、技术、技术秘密等。员工同时有义务对个人信息和员工个人工资收入保密，具体规定参见《西门子商业行为准则》及保密规定、保密协议中相关内容。

The employees have the duty to keep confidential any and all information and data such as trade secrets, lists of customers, secret process, know-how, technical secrets, etc. which are acquired by the employees in the course of employment or disclosed to the employees for the purpose of fulfilling the working tasks. The employees also have the duty to keep confidential personnel information and personnel salary information. For details, please refer to *Siemens Business Conduct Guidelines*, confidential regulations and confidential agreements.

员工违反保密义务，公司可立即解除劳动合同。如员工违反保密义务且获得不法利益的，公司可要求其向公司支付其获得所有收益。公司主张赔偿的权利不受影响。若前述途径仍然不足以弥补公司的实际经济损失的，公司保留进一步主张损害赔偿的权利。If the employee violates the confidential obligation, the Company may terminate the labor contract immediately. If an employee violates the confidential obligation and gains unlawful benefits, the Company may require the employee to pay the Company all the profits obtained. The Company's right to claim compensation is not affected. If the aforementioned approaches are still insufficient to cover the Company's actual economic losses, the Company reserves the right to further claim damages.

4.3. 安全 Safety

- 1) 确保公司财产及人身安全是每个员工的责任。公司按照中华人民共和国现行法律和法规规定，为员工提供安全健康的工作环境。员工需遵守所有安全操作规程和规

定并必须始终使用现有的和可用的保护措施，其主要目的是防止事故发生并保护员工及其同事免受事故伤害。更多详细情况请参见公司相关规定。

Safety is the responsibility of every employee. The Company provides safe and healthy working conditions according to the requirements of current laws and regulations of the People's Republic of China. Employees are required to comply with all safety rules and regulations. Existing and available protective measures must always be observed. The prime purpose of such measures is to prevent accidents and protect employees and their fellow colleagues from accidents. Details please refer to the relevant Company regulations.

- 2) 员工卡 and 安全管理：某些工作场所只有经过授权的人员才能进入。每个员工都必须配戴员工卡。更多详细情况请参见公司相关规定。

Identification Card and Security Control: To limit the access to the premises to authorized employees, every employee shall wear his/her ID card. For details, please refer to the relevant Company regulations.

4.4. 员工行为准则 **Employee Code of Conduct**

- 1) 准时：在办公时间，每个员工都必须出现在办公场所内。公司在一些地区已实行了考勤制度。欲了解更多信息，请与公司人才与组织发展部联系。

Punctuality: Every employee should appear in the workplace during office hours. In some locations, attendance control procedures have been implemented. Please contact People & Organization Department for more information.

- 2) 缺勤：员工不得无故旷工及迟到早退，除患病或经批准的请假，员工必须按时出勤，遵守作息时间。

Absence: It is the employee's duty to avoid unnecessary absenteeism and tardiness. Employees are expected to work on every workday, except for illness and approved absence.

员工由于个人原因导致缺勤时必须事先请假。如果缺勤是无法预期的，员工应立即通知相关主管。

In case of foreseeable absence caused by personal reasons, the employee must apply for an exemption of work in advance. In case of unforeseeable absence, the relevant supervisor must be informed immediately and must get a notification without any delay.

未经请假或员工在请假期限到期后没有合理的理由仍不返回工作岗位正常工作，将被视为无故旷工。员工因个人原因被国家相关部门拘留或限制人身自由，而无法出勤工作的，将被视为旷工。旷工期间公司将按照旷工天数扣除日工资。若公司未能及时扣除工资的，有权在此后的工资中予以扣除，且不能据此表明员工无任何旷工行为或被视为公司放弃追究员工旷工的权利。

If an employee fails to take a leave or fails to return to work after the leave period expires without a reasonable reason, it will be regarded as unexcused absence from work. If an employee is detained or restricted by the relevant department of the state for personal

reasons, and is unable to attend work, it will be regarded as absenteeism. During absenteeism, the Company will deduct the daily salary according to the number of days absenteeism. If the Company fails to deduct salary in time, it has the right to deduct it from subsequent salary, and it cannot be used to show that the employee has no absenteeism or be deemed to have waived the right to pursue the employee's absenteeism.

员工在每一个日历年的考勤记录将作为考核的重要指标。

The absence record within one calendar year will be an important factor for the performance assessment.

- 3) 工作场所：公司要求每个员工在工作中行为举止要适当得体，同时特别要求会见客户时衣着得体。

Duties in workplace: Every employee is requested to appear at work in a proper and decent way. This applies also and especially to appropriate clothing during customer visits.

办公室及办公设备应保持清洁整齐。员工应自觉保护公司的设备、工具和器材。每个人都应该节约使用公司的设备和工具，除特殊规定外，公司的设备和工具只能用于与工作有关的目的。

The workplace and office equipment shall be kept clean and tidy. Company equipment, tools, and other apparatus shall be used with due care. Everybody shall use Company materials, equipment, tools economically and use them only for business purposes unless it is stipulated by other specific regulations.

员工应确保适当使用公司配置的资产，包括但不限于电脑、手机以及其他办公设备等，以避免任何损坏或丢失。员工应对其由于不当使用或丢失所造成的损失负责，并应至少向公司支付资产的剩余帐面价值或者如果现行市价（市价以公司配置的特定资产价格为准）高于资产的剩余帐面价值，应向公司支付资产的现行市价，任何例外事项必须得到各自业务确定的相应负责的管理层批准。此原则同样适用于员工对第三方造成的财产损失。更多详细情况请参见公司相关规定。

Every employee who has been assigned with company assets, including, but not limited to, laptop, mobile phone, tools, shall ensure proper handling of such assets and to avoid any damage or loss. The employee shall be responsible for any damage or loss to the company assets caused by his/her improper handling of the assets and shall reimburse to the Company the remaining net book value of the assets concerned at least or current market value (the market price is based on the specific asset price allocated by the Company) if it is higher than remaining net book value, any exception should be approved by the respective responsible management defined in respective business. The same shall apply to the damages and losses caused to the property of any third party. Please refer to the relevant Company regulations for further details.

上班时间必须充分用于工作目的。公司资源（如办公室、电脑、手机、工作电子邮箱等）只能为工作目的使用，且不得存放私人物品、文件或信息。公司有权检查或

收回为工作目的配置给员工的公司资源。办公室内禁止玩扑克牌、赌博或进行类似活动。任何人未经其相关主管批准不得在工作期间离开工作场所。

Office hours and premises are strictly for business matters. Company resources, such as offices, laptop computers, mobile phones, company E-mail box, etc. shall only be used for business matters, and shall not be used for storing personal items and documents or information. The Company has the right to check or take back company resources assigned to employees for business matters. Playing cards, gambling or similar activities in the office are not allowed. During working hours no one shall leave the work area without the permission of the relevant supervisor.

4.5. 个人计算机软件 **Personal Computer Software**

办公室内以及公司配置的电脑、手机以及其他办公设备中只能使用公司授权使用的软件。员工不得：

Only software authorized by the Company could be used in the office and on the computers, mobile phones and other office equipment configured by the Company. An employee should not:

- 出于个人使用目的或其它目的，对公司的许可软件/敏感数据进行拷贝（不正当拷贝行为违反了涉及版权及商业秘密保护相关的法律法规），为正当商业目的备份、归档而进行拷贝情况除外。更多详细情况请参见公司相关规定；
make any copy of the Company's licensed software/sensitive data whether for his/her own personal use or otherwise (improper copying violates the Chinese laws and regulations related to copyright and trade secret protection), except for backup and archiving for legitimate business purposes. For more details, please refer to relevant regulations of the Company.
- 将未经过公司查毒的存储设备或从不合法渠道获得的存储设备带入或带离办公室；
bring into or take away from the office for use any storage device that has not been virus-checked by the Company or any storage device that is not legally acquired;
- 使用公司设备玩游戏，或进行“网上社交”活动，除非公司另有规定。
use the Company's devices to play any games, or to engage in “social-networking” activities unless otherwise stipulated by the Company.

4.6. 因特网和电子邮件的使用 **Use of Internet and Email**

员工使用因特网和电子邮件应遵循公司相关规定。

The use of internet and Email shall comply with the Company's policy. For details, please refer to the relevant Company regulations.

4.7. 个人电话 **Personal Telephone Calls**

在公司的业务联系中，电话起着至关重要的作用。员工不得出于私人目的而经常使用电话。

Telephones are essential to conducting business at the Company. Habitual use of the phone for personal business is not acceptable.

4.8. 员工形象和公司形象 Employee's Image and Ours

当员工使用公司电话、电子邮件系统或公司信笺，接听公司外部电话、向公司外部发送电子邮件或联络公司外部人员时，员工是代表公司在行事。因此，员工的形象应当具有商务性，员工的行为应当得当有礼，此点非常重要。

When an employee answers the phone, sends an email or contacts anyone outside of the Company using the Company phone, email system or firm letterhead, he/she represents the Company. Therefore, it is important that the image he/she projects is business-like and courteous.

第五节：劳动关系结束

Section 5: Termination

5.1. 辞职 Resignation

1) 通常员工应提交辞职信，辞职通知期按以下标准确定：

As usual the employee should submit his/her letter of resignation, the notice period of resignation should be determined according to the following:

- a) 一般情形下，员工应至少提前三十（30）天递交辞职信（不包含员工本人未休的年假天数）。劳动合同中另有约定的，按劳动合同执行。

a letter of resignation should be submitted at least thirty (30) days in advance (excluding the individual's annual leave days balance). If it is otherwise stipulated in the labor contract, it shall be implemented in accordance with the labor contract.

- b) 员工在试用期内辞职的，应提前三（3）天递交辞职信（不包含员工本人未休的年假天数）。劳动合同中另有约定的，按劳动合同执行。

in case of resignation during the probation period, a letter of resignation should be submitted at least three (3) days in advance (excluding any individual annual leave days balance). If it is otherwise stipulated in the labor contract, it shall be implemented in accordance with the labor contract.

2) 相关主管在收到员工辞职信后可与员工商议确定劳动合同解除日（暨最后工作日），若未能达成一致的，劳动合同解除时间以员工递交辞职信满上述辞职通知期时为准。

Upon receipt of the employee's resignation letter, the relevant supervisor may discuss with the employee to determine the termination date of the labor contract (i.e. the last working day). If no agreement can be reached, the termination date of the labor contract shall be

based on the expiration of the above notice period when the employee submits the resignation letter.

- 3) 如果员工在财年中辞职并且离职时奖金绩效完成率无法确定，公司有权在 0%至 100% 范围内全权决定其奖金实发比率，并须按照其离职时间按比例折算（为避免歧义，本条不作为公司发放年度目标奖金的承诺，在此情况下公司亦可决定不支付奖金）。
If the employee resigns during the fiscal year and the completion rate of bonus performance cannot be determined at the time of leaving, the Company has the sole right to determine the actual rate of the bonus in the range of 0% to 100%, which shall be converted in proportion to the time of leaving (for the avoidance of ambiguity, this does not serve as the Company's commitment to pay the annual target bonus, in which case the Company may decide not to pay the bonus).

5.2. 劳动合同终止 Ending of Employment Contract

如相关适用法律法规有所规定，则劳动合同期限届满前，公司应将终止或者续订劳动合同意向以书面形式通知员工。

If it is required by relevant applicable Law or Regulation, before the expiry of the employment contract, the Company shall notify in writing the employee its intention to terminate or renew the employment contract.

5.3. 立即解雇 Summary Dismissal

在章节 6.4 规定的条款下，公司有权立即解雇员工。针对劳务派遣人员，公司有权立即退回劳务派遣公司。参见章节 6. 4。

The Company shall have the right to dismiss the employee immediately under the terms set forth in Section 6.4. For labor dispatch personnel, the Company has the right to immediately return to the labor dispatch company. For more details please refer to Section 6.4.

5.4. 离职手续 Check out Procedure

劳动合同到期/解除或辞职的员工必须履行公司离职手续。在离开公司之前必须按照公司规定交回所有公司财产以及结清所有未清账目，并完成工作交接。

An employee whose employment contract is terminated/rescinded or who resigns should fulfill a check out procedure. All Company properties must be handed over and all open accounts should be settled as required by the Company in order for the employee to obtain final clearance before he/she leaves the Company.

第六节：劳动纪律和处罚措施

Section 6: Labor Discipline and Disciplinary Actions

6.1. 处罚措施和程序 Disciplinary Actions and Procedures

西门子绝不容忍任何违规行为。所有员工必须严格遵守公司制定的纪律、规章制度。违反规章制度的员工将受到相应的纪律处罚。

Siemens does not tolerate non-compliant behavior. All Employees must comply strictly and fully with the disciplinary rules and regulations established by the Company. Employees who contravene these rules and regulations will be subject to disciplinary actions.

- 1) 原则：处罚措施的实施对象是违反公司规章制度和政策（包括但不限于《西门子商业行为准则》和与合规相关的规定）的员工。

Principles: Disciplinary actions may be taken against those who violate the rules and policies (including but not limited to *Siemens Business Conduct Guidelines* and the compliance related rules and regulations) of the Company.

- 2) 处罚措施：根据违规行为的性质与严重程度，公司可以采取以下处罚措施：

Disciplinary Actions: Depending upon the nature and severity of the misconduct, the Company may take the following disciplinary actions:

- 1) 非正式警告

Informal warning

- 2) 正式警告

Formal warning

- 3) 立即解雇且不支付任何经济补偿

Immediate dismissal without any severance pays

- 4) 进一步措施（可以单处或与以上规定的处罚措施并处），包括但不限于：

Further actions (which may be taken exclusively or in addition to the above disciplinary actions), including but not limited to:

- 停发/撤回或削减约定的薪酬或公司自愿提供的薪酬福利（包括薪酬、奖金、销售佣金、年度目标奖金等）/西门子股票奖励；

Forfeiture/Revocation or cutback of Variable Pay or Voluntary Remuneration Elements (including salary, bonus, sales commissions, incentive etc.) /Siemens Stock Awards;

- 不涨薪；

Exclusion from increase in salary;

- 降职、调岗、不予晋升；和/或

Demotion, position adjustment, exclusion from promotion; and / or

- 免除 ICFR（基于财务报表的内部控制）认证职能。

Exclusion from an ICFR (Internal Control over Financial Reporting) certification function.

公司保留依靠自己独立判断力并根据违规情节和严重程度、违规持续时间和实施频率等因素对违规员工进行适当处罚的权利，包括根据特定情况酌情减轻处罚的权利。

The Company in its sole discretion reserves the right to discipline employees in a manner that it deems appropriate given the circumstances and severity, duration and frequency of the misconduct, etc., including the right to take lighter disciplinary actions as appropriate in particular cases.

通常，对于本手册所列举的违纪行为经公司认定员工并非主观故意违纪，且违纪情节相对较轻，未造成相应的损害后果，或者员工主动上报违纪行为，积极配合内部调查，主动采取措施消除和减轻（潜在的）风险和危害后果，和/或对上级涉及违规或有误的决定、指令提出异议但上级仍要求其执行的，公司可酌情决定给予减轻处罚。该等情形仅作为从宽处理的原则，不应作为对员工减轻处罚的保证。

Generally, if the violation listed in this manual is determined by the Company that the employee is not subjective and intentional violation of discipline, and the violation is relatively minor without causing corresponding damage consequences, or if the employee voluntarily reports the violation of discipline, actively cooperates with internal investigation, and proactively takes measures to eliminate and mitigate (potential) risks and harmful consequences, and/or objection to the supervisor's decision or instruction involving violation or error but still required by the supervisor to carry out, the Company may at its discretion give a mitigated punishment. Such circumstances shall be treated as a principle of leniency only and shall not be used as a guarantee to mitigate the punishment of the employee.

如员工因违规行为给公司造成损失或损害，则该员工有责任对公司进行赔偿。上述损失或损害包括但不限于：经济损失、名誉损害、客户损失。

If an employee violates the rules and regulations of the Company, thereby causing losses or damages to the Company, he/she shall be liable for the losses or damages. The aforesaid "losses or damages" include but are not limited to economic losses, reputation losses and client's losses.

如果员工因绩效表现不佳而不能胜任工作或因存在《中华人民共和国劳动合同法》第39条（包括严重违纪等）的情形被公司解雇，公司将不支付截至解除日尚未支付的任何奖金。特别地，公司在违纪行为合规调查期间有权暂缓发放任何尚未发放的奖金。如发现员工存在违纪行为的，公司有权撤回违纪当年公司已发放的奖金并要求员工返还。

If an employee is incompetent due to poor performance or is dismissed by the Company due to Article 39 of the *Labor Contract Law of the People's Republic of China* (including serious violations of discipline, etc.), the Company will not pay any bonus that has not been paid as of the date of termination. In particular, the Company reserves the right to withhold any outstanding bonuses during a disciplinary compliance investigation. If an employee is found to have discipline violation, the Company has the right to withdraw the bonus that the Company has paid in the year of this violation and require the employee to return it.

如果员工被怀疑存在违规情节，则公司有权对其进行停职处理，直到相关违规调查结束为止。员工在停职期间应全力配合公司的调查，除非公司要求，否则员工不得（包括但不限于）：接触公司的任何业务，进入公司的工作场所等。

If an employee is suspected of misconduct, the Company may suspend his/her employment pending the completion of investigation of the suspected misconduct. During the suspension period the employee shall fully cooperate with the Company's investigation, unless otherwise requested by the Company shall not (including but not limited to): have access to any business of the Company, enter the premises of the Company, etc.

此外，公司有权对违规员工进行合规培训。

In addition, the Company has the right to arrange for the employee who contravenes the rules and regulations of the Company to take the compliance training.

- 3) 处罚程序：违反公司规章制度和政策（包括但不限于公司《西门子商业行为准则》和与合规相关的规定）的行为应按以下程序处理：违规行为处罚措施评估应由决策机构进行。由员工的相关主管会同人才与组织发展部对员工的违规行为实施必要的和适当的处罚，并将处罚措施报人才与组织发展部备案。

Disciplinary procedures: Violations to the Company's regulations and policies (including but not limited to the *Siemens Business Conduct Guidelines* and the compliance related rules and regulations) shall be dealt with as follows: The assessment of appropriate disciplinary action(s) in response to misconduct shall be made by the Decision Body. The employee's relevant supervisor, together with relevant People & Organization colleague, are responsible for ensuring that the necessary and appropriate disciplinary actions are taken to address the employee's misconduct and are reported to the People & Organization Department for the record.

立即解雇的情形，应通知工会，并听取工会意见。

In case of immediate dismissal, Trade Union shall be notified and its comments (if any) shall be collected.

如果员工发现任何违规行为或对违规处罚有异议，可向其相关主管、合规官、人才与组织发展部或“Tell us”合规帮助台报告。在决策机构作出新的决定前，不停止原处罚措施的执行。

If an employee discovers any possible misconduct or disagrees with a disciplinary action, the employee may report it to his/her relevant supervisor, the compliance officer, the People & Organization Department, or the Compliance Helpdesk “Tell Us”. Before the decision-making body makes a new decision, the execution of the original punitive measure shall not be suspended.

涉及合规的案件处罚措施和程序详情请参见如下链接：

Please refer to the link below for more details of the compliance disciplinary measures and procedures:

<https://theum.siemens.com/lc/index.htm?t=English,chen,part-3-compliance-internal-tasks,1.-case-handling,-discipline-and-remediation,4.-disciplinary-measures>

6.2. 非正式警告 Informal Warning

以下是对可导致非正式警告的违规行为的举例说明（包括但不限于）：

Misconduct that may result in informal warnings includes but is not limited to the following:

- 1) 工作懈怠，效率不佳的；
Slacking at work and poor efficiency;
- 2) 不适当地发表消极言论，影响工作的（包括但不限于影响工作效率、工作成果、团队士气等）；
Giving negative speech improperly and affecting work (including but not limited to affecting work efficiency, work product, or team's morale, etc.);
- 3) 工作时间嬉笑、打闹或扎堆闲聊，经指出而未改正的；
Jesting, playing, or chatting together, during working hours and failing to rectify according to the Company's instructions;
- 4) 在公司场所随地吐痰，乱扔废弃物；
Spitting or littering waste on the premises of the Company;
- 5) 迟到和/或早退，不准时到岗或提前离岗，不按时交接班，或不按公司规定进行考勤登记，一个月内达到三次的；
Being late for work and/or leaving work early, failing to come to post/office on time or leaving post/office early, failing to change shift as scheduled, or failing to obey the Company's requirements on attendance tracking, for three times within a month;
- 6) 旷工一个工作日的；
Being absent from work for one working day without approval;
- 7) 衣衫不整或着装不得体且拒绝改正的；
Being disheveled or dressing inappropriately while refusing to rectify;
- 8) 在处理同事以及公司相关方等关系的过程中，未能做到言行文明礼貌的（未涉及辱骂、侮辱、攻击等严重行为）；
Failing to speak and behave politely and courteously when interacting with colleagues or the parties relating to the Company (no abuse, insult, assault or other serious behavior involved);
- 9) 在工作场所存放与工作无关的物品，且不按公司要求进行改正的；
Stocking non-work-related items in the workplace and refusing to rectify according to the instructions from the Company;
- 10) 以及与上述行为严重程度相当的其他违规行为。
And other misconduct behaviors as serious as the above.

6.3. 正式警告 Formal Warning

以下是对可导致正式警告的违规行为的举例说明（包括但不限于）：

Misconduct that may result in formal warnings includes but is not limited to the following:

- 1) 十二个月内累计收到两次非正式警告的（无论所涉违规行为是否属于同一性质）；
Receiving two informal warnings within twelve months (regardless of whether the concerned misconduct behaviors are of the same type);
- 2) 未在指定吸烟区吸烟，未将烟蒂扔入专用烟蒂回收垃圾桶内或在吸烟区乱扔打火机、纸屑等易燃物品；
Failing to smoke in the designated smoking area, throw cigarette butts into the special recycling bin, or throw lighters, paper scraps and other flammable materials in the smoking area;
- 3) 不合理地、经常地或大量地占用工作时间处理私事或从事与工作无关的活动，或未经批准擅离工作岗位的；
Unreasonably, frequently or substantially use work time to deal with private affairs or non-work-related matters or leaving post/office without supervisor's approval;
- 4) 不履行工作职责，或在指定时间内未完成工作的；无正当理由拒绝服从公司相关工作安排或指示，或无正当理由不配合同事工作的；
Failing to perform work duties or to complete work within the specified time; refusing to follow job assignments or instructions of the Company without proper reasons, or failing to cooperate with colleagues;
- 5) 工作疏忽、失误或失职，给公司、员工或公司相关方造成不良影响或一般经济损失的；
Making negligence, mistake or dereliction of duty in work and causing negative impact or ordinary economic loss to the Company, employees or related parties of the Company;
- 6) 发现公司财物有严重的损坏或丢失，或公司存在安全问题/安全隐患，有义务报告（指职责上负有报告义务或者实际接触/管理该公司财物）但未及时上报（包括通过不恰当的方式报告或向不相关的人员进行报告）或上报信息有误的；
Failing to report in a timely manner (including report by improper means or to an unrelated person) or reporting incorrect information, on serious damages to or loss of Company property or any safety problem / potential danger discovered, while the employee has an obligation to report either due to his/her job duty or because he/she has access to or manages such Company property;
- 7) 未经批准将公司财物或文件带出工作场所，并造成不良影响或一般经济损失的（未造成业务/财务信息泄露）；
Taking the Company's property or document out of the premises of the Company without approval, causing negative impact or ordinary economic loss (no disclosure of business/financial information);
- 8) 迟到和/或早退在一个月内累计五次或十二个月内累计八次的；
Being late for work and/or leaving early for accumulatively five times within a month or accumulatively eight times within twelve months;
- 9) 十二个月内累计或连续旷工两个工作日的；

Being absent from work for accumulatively two working days within twelve months;

- 10) 伪造或帮助他人伪造考勤记录（包括通过让他人帮助打卡和替他人打卡以伪造考勤记录），不超过一个工作日的；

Falsifying, or assisting others to falsify, attendance record within one working day (including having others punch the time clock for him/her or punching the time clock for others to falsify attendance record);

- 11) 未按公司流程请假或未提交相关证明材料的（若在公司指定的宽限期限内仍未完成请假流程并提交材料，缺勤日将被视作旷工，并受相应的纪律处分）；

Failing to apply for leave of absence in accordance with the procedures of the Company or failing to submit relevant supporting documents (if he/she again fails to complete the leave application procedure and provide relevant supporting documents within an extended period designated by the Company, the Company reserves the right to treat the absent period as absenteeism and to take disciplinary actions against the employee);

- 12) 未按公司的合理要求及时向公司提供相关文件或个人信息的；

Failing to timely provide related documents or personal information to the Company according to the Company's proper requests;

- 13) 故意泄露本人薪酬信息的；

Deliberately disclosing the information of personnel salary or bonus;

- 14) 未经授权或超越职权范围作出决策、发表意见且未给公司造成不良影响或经济损失的；

Making decisions or expressing opinions without authorization or beyond the scope of authority without causing negative impact or economic loss to the Company;

- 15) 未经许可，在工作场所张贴通告、照片或广告材料，通过工作场所散发与工作无关的物品，或通过公司网络/邮件发布与工作无关的信息的；

Without permission, posting notices, photos or advertisements or distributing non-work-related items on the work premises, or releasing non-work-related information through the intranet/e-mail of the Company;

- 16) 违反公司 IT 或互联网管理规定的；或违反公司员工卡管理规定或安全管理制度，比如未经批准私自配制公司各类钥匙或门禁卡，或使非授权人员进入工作场所或任由来访人员在公司办公区域内不经陪同自由走动的；

Violating IT or Internet management regulations of the Company; violating employee card policies or security control policies of the Company such as duplicating keys or entrance cards of the Company without approval or enabling non-authorized personnel to access the premises of the Company or allowing visitor(s) to wander around on the premises on their own;

- 17) 违反公司的业务流程、操作流程或安全要求，或进行对工作环境/员工（包括本人）安全造成威胁的活动的；

Violating business process, operating procedures or security requirements of the Company or engaging in activities which post threat to the safety of the work environment or the employees (including himself/herself);

- 18) 挪用或滥用公司或公司相关方的设施、物品、网络等资源或从事不当行为（包括但不限于登陆非法、色情网站、博彩网站等），造成不良影响或一般经济损失的；
Misappropriating or abusing facilities, articles, network and other resources of the Company or engaging in improper behaviors (including but not limited to logging on illegal, pornographic and gambling websites), causing negative impact or ordinary economic loss to the Company;
- 19) 向不相关的人员群发电子邮件，或通过其他不恰当的方式进行举报或指控的；
Sending group email to irrelevant personnel, making report or accusations by other inappropriate means.
- 20) 无正当理由未能及时或者拒绝向公司陈述在为公司工作中知悉的相关情况，或者提供不实陈述，但未给公司造成不良影响或经济损失的；
Failing to timely or refusing to state to the Company the relevant information known in the course of working for the Company without justifiable reasons, or providing false statements, but without causing negative impact or economic loss to the Company;
- 21) 违反公司有关避免利益冲突的相关规定或通告，尚未影响公司利益或产生实质性利益冲突的（违反有关利益冲突禁止性规定的情形除外）；
Violating the relevant regulations or notices of the Company on avoiding conflicts of interest, but has not affected the interests of the Company or has caused substantial conflicts of interest (except the case of violating the prohibitive regulations on conflicts of interest);
- 22) 在处理同事以及公司相关方等关系的过程中，出言不逊、进行辱骂或参与吵架的；
Using abusive language, cursing, or quarrelling when dealing with colleagues or related parties of the Company;
- 23) 对外出售公司或公司相关方推出的或通过公司渠道获取的专享券、内买产品、赠品、样品等；
Selling exclusive coupons, in-store products, gifts, samples, etc. launched by the Company or its related parties or obtained through the Company's channels;
- 24) 以及与上述行为性质或严重程度相当的其它违反公司规定的行为，或发生可处于非正式警告的违纪行为，但导致公司、员工或公司相关方造成不良影响或一般经济损失的。
And other violations of the Company's regulations similar to the nature or severity of the above behaviors, or violations of discipline that may be subject to informal warning, but cause negative impact or economic loss to the Company, employees or related parties of the Company.

6.4. 立即解雇 Immediate Dismissal

如果员工严重违反公司规章制度和纪律，公司有权立即解雇员工且不支付任何经济补偿。以下是对可导致立即解雇的严重违规行为的举例说明（包括但不限于）：

If an employee seriously violates the Company's rules, regulations and disciplines, the Company has the right to immediately dismiss the employee without any severance pay. Misconduct that may result in immediate dismissal includes but is not limited to the following:

- 1) 十二个月内累计收到两次正式警告的（无论所涉及的违规行为是否相同）；
Receiving cumulatively two formal warnings within twelve months (regardless of whether the concerned misconduct behaviors are of the same type);
- 2) 不履行工作职责，或无正当理由拒绝服从公司相关工作安排或指示，或无正当理由不配合同事工作，经提出拒不改正的，并造成不良影响或一般经济损失的；
Failing to perform work duties, or refusing to comply with relevant work arrangements or instructions of the company without justifiable reasons, or refusing to cooperate with colleagues without justifiable reasons, and refusing to correct after being proposed, and causing negative impact or ordinary economic loss;
- 3) 无正当理由，妨碍或不配合公司内部调查（包括但不限于事实调查、违纪调查和合规调查）或在内部调查中拒绝提供信息或提供虚假信息的；
Obstructing or failing to cooperate with the Company's internal investigation (including but not limited to facts investigation, disciplinary investigation and compliance investigation), or refusing to provide information or providing false information during the internal investigation without justifiable reason;
- 4) 工作疏忽、失误或失职，并给公司、员工或公司相关方造成严重不良影响或重大经济损失的；
Making negligence, mistake or dereliction of duty in work and causing serious negative impact or significant economic loss to the Company, employees or related parties of the Company;
- 5) 未经批准将公司财物或文件带出工作场所，并造成严重不良影响或重大经济损失的（包括但不限于业务/财务信息泄露）；
Taking the Company's property or document out of the premises of the Company without approval, causing serious negative impact or significant economic loss (including but not limited to disclosure of business/financial information);
- 6) 连续旷工三个工作日或十二个月内累计旷工四个工作日的；
Being absent from work for three consecutive working days, or four accumulative working days within twelve months;
- 7) 向公司隐瞒、虚报或谎报工作情况；
Concealing, falsely reporting, or lying on work related matters to the Company;
- 8) 提交不真实的病假或工伤治疗申请（包括但不限于提交假病假单、假病历、病历与病假单不吻合等），骗取病假或工伤待遇的；
Submitting fake application for sick leave or occupational injury treatments (including but not limited to providing fake sick leave certificates or medical records or sick leave notes with inconsistent medical records) for the purpose of obtaining sick leave or occupational injury benefits by cheating;
- 9) 在应聘时不如实、全面地提供与雇佣相关的基本信息的，包括但不限于学历、工作经历、资质证书、与前用人单位签署的尚在有效期内的协议等；
When applying for job with the Company, failing to truthfully and fully provide basic information which directly relates to employment, including but not limited to education, work experience, qualification certificates, agreements with former employer which remain in force, etc.;

- 10) 伪造或帮助他人伪造考勤记录（包括通过让他人帮助打卡和替他人打卡以伪造考勤记录），超过一个工作日的；

Falsifying or assisting others to falsify attendance records for more than one working day (including having others punch the clock for him/her or punching the clock for others to falsify attendance record);

- 11) 涂改、伪造、编造票据，或伪造签名、证章、记录、文件，虚报数据，签订虚假合同或承诺的；

Altering, forging or fabricating bills, or forging signatures, certificates, records or documents, falsifying data, or signing false contracts or promises;

- 12) 通过提供伪造、变造或虚假发票或不真实/不合理的报销信息等方式骗取报销且无论是否已经获得审批以及数额大小的；

Obtaining reimbursement fraudulently by providing altered, forged or false invoices or untrue/unreasonable reimbursement information, regardless of the amount and whether it has been approved or not;

- 13) 涂改、伪造、虚报或销毁各种记录、单据或文件资料的，或实施欺骗、弄虚作假或其它类似不正当、不诚信行为的；

Altering, forging, falsely reporting or destroying all records, bills or documents, or cheating, falsifying or other similar unfair and dishonest acts;

- 14) 盗窃公司或他人财物，或侵占、挪用公司的财产或财物；

Stealing property of the Company or others, or seizing or misappropriating property of the Company;

- 15) 向第三方（包括与业务无关或未经授权的本公司员工）泄露公司业务、财务资料或其他含有公司、员工或公司相关方的保密信息或数据，或未经许可擅自转发、拷贝该等资料/数据至个人或第三方邮箱或存储设备的；

Disclosing the Company's business, financial information or other confidential information or data containing the Company, employees or related parties of the Company to a third party (including non-business related or unauthorized employees of the Company), or forwarding or copying such information/data to personal or third-party mailboxes or storage devices without permission;

- 16) 未经授权或超越职权范围作出决策、发表意见，给公司造成不良影响或一般经济损失的；

Making decisions or expressing opinions without authorization or beyond the scope of authority, which causes negative impact or ordinary economic loss to the Company;

- 17) 未经公司批准或授权，假借公司名义开展任何事项或从事任何活动的；

Executing any events or engaging in any activities in the name of the Company without the consent or authorization of the Company;

- 18) 在公司生产区域或存放有易燃易爆物品、材料的区域吸烟的；

Smoking in the Company's production area or the area with inflammable and explosive articles and materials;

- 19) 携带武器、毒品或其他危险品进入公司的；

Carrying weapons, drugs, or other dangerous items into the Company;

- 20) 违反公司的业务流程、操作流程或安全要求，并造成不良影响或一般经济损失的或进行对工作环境/员工（包括本人）安全造成威胁的活动；

Violating the Company's business process, operation process or safety requirements, and cause negative impact or ordinary economic loss, or engaging in activities that threaten the safety of the working environment/employees (including himself/herself);

- 21) 违反公司IT或互联网管理规定，或违反公司员工卡管理规定或安全管理制度，并造成不良影响或一般经济损失的；

Violating IT or internet management regulations of the Company, or violating the employee card policies or security control policies of the Company, and causing negative impact or ordinary economic loss;

- 22) 故意损坏公司财物的，或未经书面批准，占用或挪用公司公款的（不论数额大小）；

Deliberately damaging Company property, occupying or embezzling funds of the Company (regardless of the amount) without written approval by the Company;

- 23) 挪用或滥用公司或公司相关方的设施、物品、网络等资源或从事不当行为（包括但不限于登陆非法、色情网站、博彩网站等），造成严重不良影响或重大经济损失的；

Misappropriating or abusing facilities, articles, network and other resources of the Company or related parties of the Company or engaging in improper behaviors (including but not limited to logging on illegal, pornographic and gambling websites), causing serious negative impact or significant economic loss to the Company;

- 24) 违反伦理标准、道德责任、公序良俗，有损公司利益或形象的；

Violating ethical standards, moral responsibility, public order and good morals, or damaging the interests or image of the Company;

- 25) 在与工作相关的活动中，违反《西门子商业行为准则》和公司其他行为规范中与反腐败、反贿赂、反垄断、反洗钱、出口控制等相关的要求，或者违反反腐败、反贿赂、反垄断、反洗钱、出口控制等任何相关法律法规的；

In work-related activities, violating the requirements related to anti-corruption, anti-bribery, anti-monopoly, anti-money laundering and export control in the *Siemens Business Conduct Guidelines* and other codes of conduct of the Company, or violating any relevant laws and regulations related to anti-corruption, anti-bribery, anti-monopoly, anti-money laundering and export control;

- 26) 未经许可，在工作场所张贴、散发或通过公司网络/邮件发送有关公司、其他员工或工作相关方的负面信息，或以其他方式扰乱公司正常经营秩序的；

Posting, distributing or sending negative information about the Company, other employees or work-related parties through the company's network/email in the workplace without permission, or otherwise disturbing the normal operation order of the Company;

- 27) 制造、提供或散布有损公司声望或利益的信息的；

Creating, providing, or distributing information which harms the Company's reputation or interests;

- 28) 向不相关的人员群发电子邮件，或通过其他不恰当的方式进行举报或指控，并经指出后拒不改正或造成不良影响的；或者故意进行夸大的或不真实的举报或指控或通

过不恰当方式在公开场合/公众平台（如新闻媒体、微博、微信朋友圈等）进行申诉、举报或指控的；

Sending group email to irrelevant personnel or making reports or accusations in other inappropriate ways, and refusing to correct after being pointed out or causing negative impact, or intentionally make exaggerated or untrue reports or accusations or make complaints, reports or accusations in public places/public platforms (such as news media, Weibo, WeChat Moments, etc.) in inappropriate ways;

- 29) 擅自在新闻媒体上以公司名义发言（经授权除外）；或者在公共媒体、社交网络、工作相关通讯群组等媒介陈述、发布或泄露有关公司财务、经营、业务、商业伙伴、人事管理等信息和/或其他内部信息，或涉及西门子的评论、图片、视频等并影响西门子的品牌形象、声誉的；以及其他违反《西门子中国社交媒体使用准则》以及关于媒体采访、公开发言的相关规定的；

Stating, publishing or leaking information about the Company's finance, operation, business, business partner, personnel management and/or other internal information, or comments, pictures, videos related to Siemens and affect the brand image and reputation of Siemens on public media, social networks, work-related communication groups and other media; and other violations of the *Siemens Internal and external use of social media* and the related regulations about press talk and public speech;

- 30) 对与公司相关人员（包括公司相关方），以任何形式（包括但不限于利用网络、电话、短信、邮件、面对面等）实施骚扰（包括性骚扰）、造谣诽谤、恐吓威胁、谩骂侮辱、积极实施肢体冲突的、或打架斗殴的；

Harassment (including sexual harassment), slander, intimidation, abuse, insult, physical conflict, or physical confrontation in any form (including but not limited to the use of the Internet, telephone, SMS, email, face-to-face, etc.) against related personnel of the Company (including related parties of the Company);

- 31) 寻衅滋事，煽动罢工、集体闹事、犯罪、造成骚动或从事非法活动或其他影响公司正常生产经营秩序的行为；

Picking quarrels, provoking trouble, inciting strikes, collective disturbances, committing crimes, causing disturbances or engaging in illegal activities, or other behaviors that affect the normal production and operation order of the Company;

- 32) 对进行正当举报、指控和投诉的员工或参加公司调查的员工进行威胁、刁难、打击或报复的；

Threatening or retaliating against employees who properly raised allegations or complaints or who participated in the Company's investigation;

- 33) 无正当理由未能及时或者拒绝向公司陈述在为公司工作中知悉的相关情况，或者提供不实陈述，给公司造成不良影响或一般经济损失的；

Failing to timely or refusing to state to the Company the relevant information known in the course of working for the Company without justifiable reasons, or providing false statements, causing negative impact or ordinary economic loss to the Company;

- 34) 未经公司同意，直接或间接地在公司外部担任职位或参与业务，严重影响本职工作或经公司提出后拒不改正的；

Without the consent of the Company, directly or indirectly holding any position or engaging in any business other than those of the Company, and seriously affecting job duties to the Company or refusing to rectify when instructed by the Company;

- 35) 违反公司关于避免利益冲突的规定或通告，存在公司禁止的利益冲突行为，或其他产生实质性利益冲突的行为；

Violating the Company's regulations or notices on avoiding conflicts of interest, making conflicts of interest which is forbidden by the Company or other conducts that create material conflicts of interest;

- 36) 以及与上述行为性质或严重程度相当的其它严重违反公司规定（包括《西门子商业行为准则》）的行为，或发生可处非正式警告、正式警告的违纪行为，但导致公司、员工或公司相关方造成严重不良影响或重大经济损失的。

And other violations of the Company's regulations of the similar nature or severity as the above-mentioned behaviors policies (including behaviors in the *Siemens Business Conduct Guidelines*), or disciplinary violations that can be given informal warnings, but cause serious negative impact or significant economic loss to the Company, employees or the Company-related parties.

备注：本员工手册第一章第六节所提及的“公司相关方”指公司的关联公司、供应商、分销商、代理商、客户、商业伙伴以及与公司有往来的机构和个人；“一般经济损失”指人民币两千元以下的直接或间接经济损失；“重大经济损失”指人民币两千元或以上的直接或间接经济损失。请注意，在某些情形中，因员工的违纪行为造成公司、公司相关方一般经济损失的，亦可能导致立即解雇。

Note: The “related party” of the Company mentioned in Part A Section 6 of this Employee Handbook refers to the Company’s affiliated companies, suppliers, distributors, agents, clients, business partners, and institutions and individuals who have dealings with the Company; the “ordinary economic loss” refers to direct or indirect economic loss less than RMB 2,000; the “significant economic loss” refers to direct or indirect economic loss amounting to RMB 2,000 or more. Please note that in some cases, the employee's disciplinary violations which cause ordinary economic loss to the Company and related parties may result in immediate dismissal.

员工应当认识到，这里不可能对所有违反公司规章制度或纪律的行为进行一一列举。因此，公司有权就某一员工的违规行为的严重程度及相应的处罚措施进行认定，如确认员工存在严重违反公司规章制度或纪律的事实，即可立即解除与员工之间的劳动关系且不支付任何经济补偿。

Employees acknowledge that it is not practicably possible to herein list all possible violations of the Company’s rules. Therefore, the Company has the right to assess and judge the severity of an employee’s specific misconduct and the corresponding disciplinary consequences. The Company may immediately terminate the employment with the employee without any severance pay if the Company has determined that a Company rule has been seriously violated by the employee.

员工如有一个违纪行为违反多项制度的，公司有权按处罚最重的规定给予处罚。

If an employee has one misconduct violating several regulations, the Company may impose the severest sanction under all applicable disciplinary rules.

第七节：社会保险及住房公积金

Section 7: Social Security and Public Housing Fund

根据中国相关的劳动法律法规规定，公司将按照应缴比例为员工缴纳各项基本社会保险和住房公积金。如果员工个人也需缴纳部分费用，公司将从员工的工资里扣掉员工应缴的金额并代员工将其转交给相应的社会保险管理机构。缴纳比例按各地政府规定执行。欲了解详细信息，请与公司人才与组织发展部联系。

In accordance with relevant labor rules and regulations of China, the Company will contribute its part to the various social security funds and housing provident funds. In the case that an employee also has to contribute his/her part to such funds, the Company will deduct the required amount from his/her salary and pay it to the respective fund management center on his/her behalf. The contribution percentage varies from location to location. The funds explained below exist in almost all locations. For detailed information, please contact People & Organization Department.

第八节：创新员工的奖励与报酬

Section 8: Reward and Remuneration for Inventors

作为我们的价值观之一，创新对于我们创造可持续的发展和收益至关重要。为了鼓励员工的创新活动，并保护公司的知识产权资产，公司将为提交职务发明创造的员工支付货币奖励和报酬和/或非货币奖赏。更多详细情况请参见公司知识产权相关规定。

As one of our values, Innovation is critical for us to create sustainable development and revenue. To encourage innovation activities of employees and to protect the Company's IP assets, the Company would provide monetary and/or non-monetary rewards and remunerations to employees who have made and reported inventions and creations. For details, please refer to relevant invention reward policy of the Company.

第二章：附件

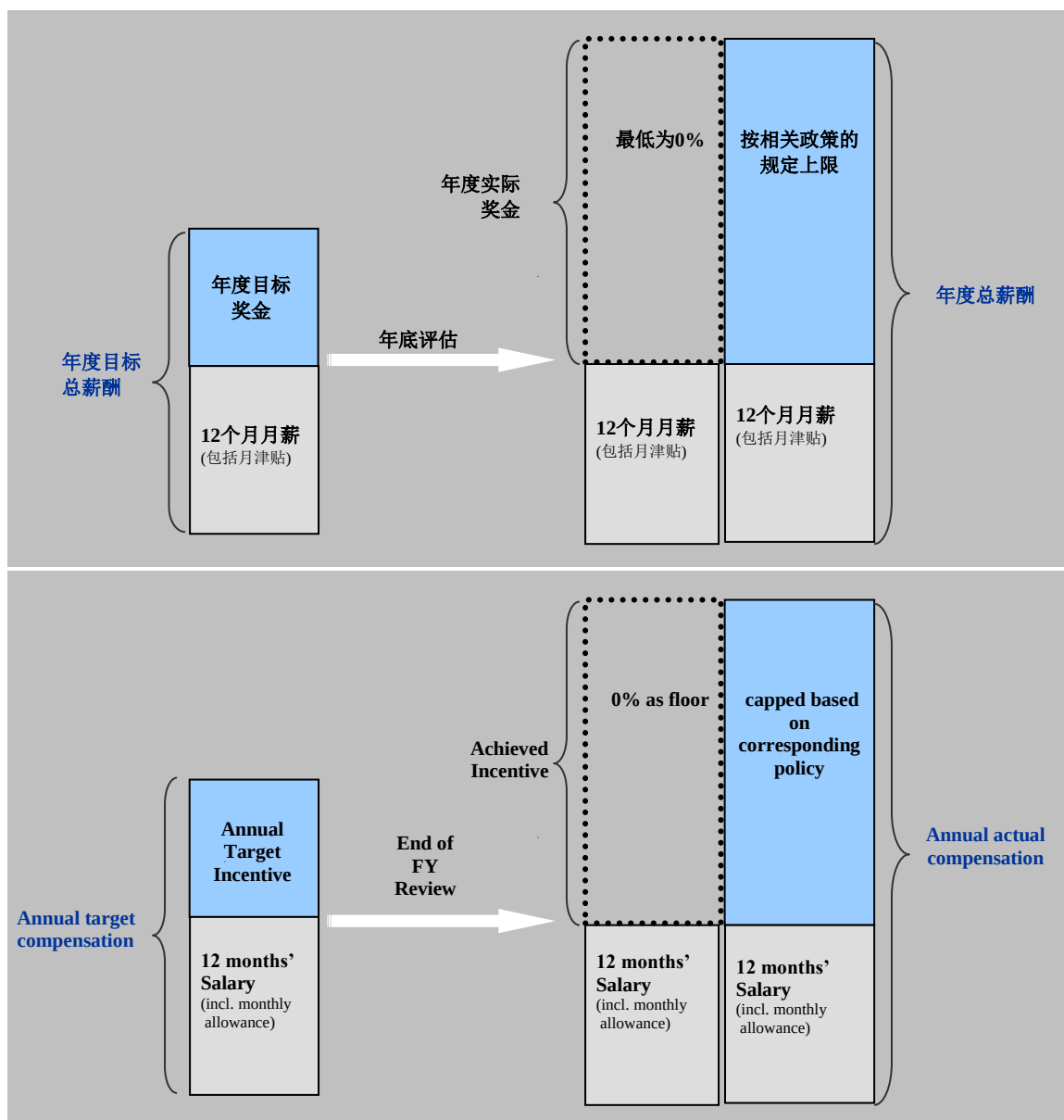
Chapter 2: Annex

第一节：薪酬结构

Section 1: Compensation Structure

下图显示了公司的薪酬结构。

The following graph shows the components of the compensation structure.



- 1) 员工年度目标薪酬包括 12 个月的工资和年度目标奖金。员工的月工资每月末会支付到员工的个人帐户上，月工资包括月基本工资、月度津贴。月度津贴包含国家和地方现在或将来规定的所有津贴、补助、福利、奖励、一次性支付款项等（包括但不限于取暖费、防暑降温费、独生子女费及相关的一次性奖励等）。员工每月可从公司内部网查询或下载工资单。

Annual target compensation is composed of twelve (12) months salary and annual target incentive. Monthly salary includes monthly basic salary and monthly allowance that are paid at the end of each month to employee's individual bank account. Monthly allowance is a lump-sum amount covering all kinds of allowances, subsidies, welfare, award or one-time payment (including but not limited to heating fee, high-temp subsidy, single child subsidy and relevant one-time award, etc.) stipulated by the national and local government at present or in the future. Employees will check and download monthly pay slip on the intranet of the Company.

- 2) 按照公司的薪酬体系，根据所设定目标完成的情况，员工最终获得的年度实际业绩奖金可能高于或低于其年度目标奖金。销售人员适用于相应的销售奖金计划。更多详细信息，请参阅公司相关规定或咨询公司人才与组织发展部。

According to the salary structure of the Company, the final actual annual incentive amount maybe higher or lower than his/her annual target incentive amount according to the fulfillment of set targets. Sales is included in respective sales incentive plan. Please refer to the relevant regulations or contact People & Organization Department for details.

- 3) 所有报酬都需依法缴纳个人所得税。

All the above payments are subject to individual income tax.

第二节：公司福利

Section 2: Company Benefits

公司在社会保险及住房公积金以外，还为员工提供弹性福利及其他福利。

In addition to the social security and public housing fund scheme, the Company also offers Flexible Benefit plan and Other Benefit.

1. 弹性福利 Flexible Benefit plan

弹性福利计划包括以下组成部分：

The flex benefit plan consists of:

核心福利：包括基本的商业医疗保险和人寿/人身意外保险。

Core Benefits: including basic commercial medical insurance and life/accident insurance coverage.

自选福利：是指公司给员工一定的福利额度，在此福利额度范围内员工可以自由选择，其中包括了公司养老金计划 (企业年金计划)，即公司为员工提供的社会养老保险以外的退休福利。

Flex Benefits: The Company give employee a certain amount of entitlement and employee can use the entitlement to choose benefits. Company Pension Plan -Enterprise Annuity (EA) plan is part of flex benefits, which offers employees with supplementary financial assistance for retirement in addition to the current social pension scheme.

更多细节，请参阅《弹性福利手册》及《企业年金计划》。

For more details, please refer to *Flex Benefit Plan Handbook* and *Enterprise Annuity Plan Handbook*.

2. 其他福利 Other Benefit

2.1. 公司出游 Company Outing

公司出游福利用于支持员工年度出游活动。

Company outing benefit is used to support an annual company outing activity.

2.2. 公司新年年会 Company Chinese New Year Party

公司新年年会福利用于支持员工新年聚会活动。

Company Chinese New Year party benefit is used to support New Year party celebration activity.

2.3. 体检 Health Check

体检福利旨在帮助员工了解自身健康情况。

Health check benefit is used to help employee to understand their health.

除了特别的声明之外，以上的福利计划是公司根据公司经营状况而提供的，公司保留依法适时更改、修订、终止、删除或增加福利内容的权利。必要时，新的计划将会取代现有计划。

Except for special statement, the above benefit plan is provided at the discretion of the Company according to its business situation. The Company reserves the right to alter, change, terminate, cancel, or add benefits pursuant to the laws. A new scheme will replace an old scheme where necessary.

第三节：休假

Section 3: Leave Benefits

3.1. 公共和法定节假日 Public and Statutory Holidays

1) 员工有权享受国家规定的公共假期。

Employees have the right to enjoy public holidays.

2) 除了公共节假日之外，公司每年还将提供其他公司假日（公司停业日）。公司将保留对公司假日进行调整的权利。

Besides public holidays, the Company reserves the right to decide other holidays (Company closing days) which may be revised annually.

3.2. 带薪年假 Paid Annual Leave

1) 每个日历年，员工享有一定工作日的带薪年假（“年假”），其中包含法定年假（“法定年假”）以及公司可能自愿向员工提供的额外年假（“公司年假”）。具体休假规定请参见公司《休假制度》。

The employees are entitled to certain paid leave per calendar year (“Annual Leave”) which

consists of statutory annual leave and the additional annual leave that the Company may grant to the employees on a voluntary basis (Company Annual Leave). Details, please refer to *Leave Regulation*.

- 2) 如果员工的雇佣时间不足一年，年假的时间将根据雇佣时间按比例进行计算。在试用期内，员工只能享受到目前为止累计的年假时间。如果员工辞职，年假将按照员工在本日历年度已工作的时间按比例计算。

If an employee has been employed for less than one year, the annual leave will be given corresponding to the number of months of employment on a pro rata basis. During the probation period, an employee may take only that portion of his/her Annual Leave which has accrued so far. If an employee resigns, the annual leave will be granted also only on a pro rata basis.

- 3) 员工年假应该在相应的日历年内休完，法定年假视为在公司年假之前使用。未用完的年休假在下一个日历年度的3月31日之后将作废。员工应申请所享受的年假天数，但任何超标准休假被禁止，超额的休假天数将在工资中相应扣除。

Annual leave shall be taken within the corresponding calendar year and the statutory annual leave is deemed to be used before the Company annual leave. In case of compelling business need, employees may take their annual leave in following calendar year, but in any case, should not be later than 31st March of the following calendar year. Any non-taken leave will be invalidated on 31st March of the following calendar year. The employees shall apply to take all of his/her annual leave. In any cases the actual annual leave entitlement cannot be exceeded during the running calendar year. Otherwise, the salary will be deducted correspondingly.

- 4) 如果员工即将离职，相关主管应安排员工在其最后一个工作日之前休完未使用的年假。如果由于业务需要，员工在最后一个工作日之前未休完年假，则享有按以下原则计算的补偿：

If an employee is leaving the Company, the relevant supervisor should arrange the employee to take the untaken annual leave before his/her last working day. If due to the need of business, Annual Leave cannot be taken before his/her last working day, the employee is entitled to compensation calculated according to the following principles:

- 未使用的法定年假： $300\% \times \text{过去12个月的日平均工资（不含加班）} \times \text{未使用的年假天数（按比例）}$ （其中包括公司支付员工正常工作期间的工资收入）；

Untaken Statutory Annual Leave: $300\% \times \text{daily average salary of last 12 months (without OT)} \times \text{number of days untaken (pro rata based)}$ (including the salary already paid by the Company to the employee per day in normal working days).

- 未使用的公司年假： $100\% \times \text{月工资}/21.75 \times \text{未使用的年假天数（按比例）}$ （实行综合计算工时工作制的员工，小时基本工资的計算規則應以相應規定為準）。

Untaken Company Annual Leave: $100\% \times \text{monthly salary}/21.75 \times \text{days untaken (pro rata based)}$ (for employees who implement generalized calculation of work hours work

system, the calculation rules of hourly basic salary shall govern according to the corresponding regulations).

- 对于高层管理人员未使用的公司年假余额，公司将不会给予补偿。

For Senior Management, the Company will not compensate untaken company annual leave.

- 5) 除特殊假期外，年假已包括国家或地区规定的其他形式的休假，如公共纪念日等。

Besides the special leaves, the entitlement to annual leave covers other leave types, such as public anniversary and etc.

3.3. 特殊休假 Special Leaves

除了公司提供的年休假之外，员工还可根据现行的国家假期规定享受特殊假期。若当地有特殊休假规定，则从地方规定。

Besides the annual paid leave granted by the Company, employees may be entitled to special leaves under certain circumstances according to existing national special leave regulations. Local regulations shall prevail if there are special leave regulations in respective location.

特殊休假的条件、频率（如果适用的话）以及期限按照国家法律或省级地方性相关规定执行。

Most special leaves, their conditions, frequency (if applicable) and duration are stipulated by national law or provincial respectively municipal regulations.

特殊休假必须与相应的事件联系起来且在相应的享有权利期限内，不能随时间的推移而累计或转移。对于未休完的特殊假期，公司将不会给予任何形式的补偿。

Any special leave must occur in connection with the respective event during the respective entitlement period, it cannot be accrued or transferred over time. The Company will not make any compensation in any form when the leave is not fully taken.

符合《中华人民共和国人口与计划生育法》以及各地相关生育政策规定的员工，有权享有生育及育儿相关的休假。

Those employees who comply with *the Population and Family Planning Law* and the relevant local regulations are entitled to enjoy the maternity and child-rearing related leave.

3.4. 病假 Sick/Medical Leave

- 1) 病假待遇一般原则（适用于非工伤）

General rules for absence due to sickness (applicable to non-work-related injury)

任何病假都应立即通知公司（事先通知或发生的当天或病假发生后的第一个工作日）并按照公司规定履行病假申请流程。病假时间超过一天须尽快告知可能的请假期限并出具公司指定或认可的医院的医生证明，包括挂号凭证、病假单、门诊记录/病

历、医药费收据等；如果病假时间不超过一天，如公司要求，亦应提供医生证明。医生证明需在看病后一天内递交到公司。公司对医生证明提出异议的，可以要求员工在指定医院重新检查，若员工拒绝，则视为病假不成立。

Any sick leave shall be notified to the Company immediately (the day of prior notice or occurrence or the first working day after the occurrence of the sick leave) and the sick leave application process shall be followed in accordance with the Company's regulations. Sick leave of more than one working day has to be notified with the expected duration of absence as soon as possible and be certified by doctors of hospitals designated or permitted by the Company, include the registration vouchers, sick leave slips, outpatient records/medical records, receipts for medical bills, and etc. If the sick leave does not exceed one day, a doctor's certificate should also be provided if required by the Company. The certificate should be delivered to the Company in the next day after seeing doctor. If the Company has any doubt about the certificate, the Company shall have a right to request the employee to have another check-up in a hospital designated by the Company. If the employee refuses to undergo such check-up as requested by the Company, the sick leave would be deemed unapproved.

2) 病假期限和病假期间劳动报酬的规定

Sick leave duration and sick pay

员工患病期间，公司将依据相应的国家和当地政策法规，对病假条件和医疗期以及员工在劳动合同解除或终止之前应获得的病假薪酬水平作出规定。

In any case of sickness, the Company will observe the relevant national and local regulations which stipulate conditions and maximum medical treatment period as well as the level of sick leave pay before termination or ending of the employment contract.

相关的病假工资规定已列入公司《假期规定》中。详细信息请参阅公司《假期规定》。

The sick leave pay scheme is defined in the Company's *Leave Regulation*. For details, please refer to *Leave Regulation*.

3.5. 请假/请假记录 Application for Leave/Leave Record

- 1) 员工如需请假（公司假日除外），员工必须提交休假申请。病假、婚假、产假以及其生育、育儿、陪护相关的假期，还必须提供相应的证明文件。

An employee has to apply for any kind of leave (with the exception of Company closing days) by submitting an application. Where applicable, e.g., sickness, marriage, maternity leave, and leave related to childbirth, childcare, and companionship appropriate certificates have to be delivered.

- 2) 请假必须事先根据公司的审批程序获得相关主管的批准。公司将在假期批准后会和相关记录进行审核、记录和保存。

Each leave has to be approved in advance by the relevant supervisor according to the Company's signature mandate. The Company will review, record and keep the application documents after approval.

- 3) 如果原来计划的假期发生变化，必须重新履行申请程序。

In case of later changes to the originally planned leave, the application procedure has to be undergone once again.

详细信息请参阅公司《假期规定》。

For more details, please refer to *Leave Regulation* of the Company.

第四节：工作时间/加班

Section 4: Working Hours / Overtime

- 1) 通常情况下，公司执行标准工时制度，即每周四十（40）个小时，从星期一到星期五。但如果因工作需要，公司可执行不定时工作制或综合计算工时工作制。为了确保公司的平稳有效运营，根据工作的需要，公司可以要求员工在正常工作时间以外工作。

Employees normally work under the standard working hour system, i.e., 40 hours per week, Monday to Friday. However, if an employee's job duties require, he/she may be required to work under the flexible work hours work system or generalized calculation of work hours work system. To ensure the smooth and efficient running of the Company, an employee may be expected to work beyond his/her normal working hours depending on the demands of the employee's work.

- 2) 只有在加班获得相关主管事先批准的情况下，加班员工才可以获得加班工资。

An employee shall be entitled to overtime pay only if he/she obtains prior approval from the relevant supervisor of the Company to work overtime hours.

- 3) 上、下班途中，在非正常工作时间出于业务目的款待、陪同公司客人，以及出差路途中的时间等不被视为加班工作。

Time spent on the road to and from work, on the road of business travel, entertainment and accompanying guests for business purpose outside normal working hours will not be considered overtime.

- 4) 在加班获得相关主管事先批准的情况下，周末/节假日期间产生的往返出租车费用可以报销。正常工作日加班的出租车费用已经含在交通补贴/弹性福利额度中，不再另行报销。费用报销不能作为加班工资获批的依据，员工加班仍应按照相关规定事先进行批准。

With the prior approval from the relevant supervisor to work overtime, taxi fees incurred during weekends or public holidays can be reimbursed. Taxi fees incurred due to overtime

work on normal working days will not be reimbursed since the fees have been included in employees' transportation allowance / Flex Benefit Entitlement. Expense reimbursement cannot be used as the basis for the approval of overtime pay, and the employee's overtime work should still be approved in advance according to the relevant regulations.

5) 出差期间的加班也适用以上规定。

The aforesaid provisions also apply to overtime work outside normal working hours.

第五节：员工绩效和发展

Section 5: Employee Performance & Development

为了使员工能够充分发挥潜力，公司努力为大家赋能，通过个人成长来强化绩效，以更好地服务客户和不断创新。员工和相关主管应在日常工作中进行持续的成长对话。成长对话包含以下要素：

To unleash the full potential of our employees, the Company strives to empower everyone, and strengthen performance through individual growth. In this way, our employees can serve our customers better and innovate faster. To strengthen performance, employee and his/her relevant supervisor are encouraged to conduct Growth Talks continuously, which have the following key elements:

- 设立清晰的期望和灵活的目标以支持业务发展
Clear expectations and agile goals supporting high-level purpose
- 鼓励持续学习和开放的、多源的反馈
Continuous learning and open feedback
- 开展面向未来的对话，以支持员工成长和业务发展
Future-oriented development discussions that support individual/business growth
- 除了年度涨薪以外，还可以采用其它及时有效的方式认可员工的贡献
Recognition will not be limited to annual salary increases but will become a timely recognition of contributions and achievements in a personally meaningful way

此外，在助力员工发展方面，西门子为处于不同发展阶段的员工提供了多样的发展工具、项目并安排了多种助力员工成长的社群和活动。帮助大家不断提升能力，并根据自己的职业发展目标实现个人的成长。员工可以充分利用公司提供的这些丰富资源做自己职业发展的主人。

In regards of supporting employees' development, the Company provides a variety of development tools, programs, communities, and activities for employees at different career stages to grow continuously. These help our employees to enhance their competence and realize personal and professional growth according to own career aspirations.

员工的相关主管可基于业务需要、员工绩效等因素对员工具体的工作内容、任务安排、工作要求提出安排，且无需与其他员工完全一致，员工须按时、按质、按量完成。否则，公司有权对员工采取纪律处分措施。

The relevant supervisor of the employee may arrange the specific work content, task arrangement and work requirements of the employee based on business needs, employee performance and other factors, and it is not necessary to be completely consistent with other employees. The employee must complete the work on time, in quality and in quantity. Otherwise, the Company has the right to take disciplinary measures against the employee.

公司将适时审查评估员工各方面的工作绩效，包括但不限于：业绩和工作任务完成情况、工作任务理解及认知能力、工作计划及执行能力、工作效率及时间管理能力、应用方法及创新能力、团队合作及沟通能力等。员工的相关主管可不定期对员工工作绩效进行审查评估，并可作为员工能否胜任工作的依据。对于不能胜任工作的员工，公司可安排员工进行绩效改进计划，以保持持续的对话并帮助员工提升绩效，员工须予以重视，并配合完成相应的改进任务和要求。

The Company will timely review and evaluate all aspects of employee's work performance, including but not limited to: performance and task completion, task understanding and cognitive ability, work planning and execution ability, work efficiency and time management ability, application method and innovation ability, teamwork and communication ability, etc. The relevant supervisor of the employee may review and assess the performance of the employee from time to time, which can be used as the basis for the employee's competence in the job. For employees who are not competent for their work, the Company can arrange them to carry out performance improvement plans to maintain continuous dialogue and help them improve their performance. Employees shall pay attention to them and cooperate to complete the corresponding improvement tasks and requirements.

员工不能胜任工作，经过培训或者调整工作岗位，仍不能胜任工作的，公司可依法解除劳动合同。“不能胜任工作”包括但不限于下列情形之一：

If an employee is incompetent for the job and remains incompetent after training or adjustment of his/her position, the Company may terminate the labor contract in accordance with the law. "Incompetent for work" includes but is not limited to one of the following situations:

- 员工未达到双方签订合同、其他协议、公司相关政策中列示或规定的员工职责要求；
The employee fails to meet the responsibility requirements listed or stipulated in the contract signed by both parties, other agreements and relevant policies of the Company;
- 员工未达到管理层或相关主管的要求，按时、按质或按量完成工作任务或安排；
The employee fails to meet the requirements from the management or relevant supervisor, to complete work tasks or arrangements on time, quality, or quantity;

- 员工在履行其职责时不能达到同类工作岗位通常所期望的绩效水平或从事同类工作通常所应当达到的绩效水平（无需相同团队，可参考相同或相似岗位、工作的相关绩效水平）；

When performing their duties, the employee cannot achieve the performance level that is usually expected in similar job positions or is usually achieved in similar jobs (not required in the same team, and the relevant performance levels of the same or similar positions and jobs can be referred to);

- 员工未达到本部门制定的绩效目标、考核要求或业绩指标完成率，包括绩效改进计划中的考核要求；

The employee fails to meet the performance goals, assessment requirements or completion rate of performance indicators set by the department, including the assessment requirements in the performance improvement plan;

- 其他公司基于员工的工作绩效所认定的不胜任工作的情形。

Other incompetent situation determined by the Company based on the employee's job performance.

如需了解更多信息，请查看相关政策、人才与组织发展部门内网或联系您的人才与组织发展部门伙伴。

For further information, please refer to the relevant regulation in P&O intranet or contact People & Organization Department.

第六节：出差

Section 6: Business Travel

公司有相应的《差旅与费用政策》。如果员工因业务原因必须出差，出差期间，公司将报销与出差相关的费用。

The Company has relevant regulations *Travel and Expense Policy*. In case an employee has to travel for business purposes, during the period of business travel the Company will reimburse the travel expenses.

更多详细信息，请参阅《差旅与费用政策》或咨询公司人才与组织发展部。

Please refer to the relevant regulations *Travel and Expense Policy* or contact People & Organization Department for details.

第七节：政策发布

Section 7: Publication of Policies

公司通过公司内部网、西门子公司简报（circular）等方式向全体员工发布公司政策、规定。员工应当及时主动地访问公司内部网了解公司政策、通知和消息。

The Company publishes its policies and regulations via intranet or by circular or other means to be further notified to all the employees. The employees should visit the Company Intranet timely and regularly for any new or updated policy, notice and information.

第八节：相关政策和制度网站

Section 8: Relevant Links to Rules & Regulations

以下列举了公司部分重要政策、规定的内网链接，该等政策、规定是公司重要的规章制度组成部分，员工应当及时访问并阅读、了解政策、规定的全部内容。以下所列举的内网链接可能会有变化的，访问地址应以不时的更新为准。

The following lists the Intranet links of some important policies and regulations of the Company. These policies and regulations are part of the important rules and regulations of the Company. Employees should timely access, read and understand all the contents of the policies and regulations. The Intranet links listed below are subject to change and the access address should be updated from time to time.

西门子中国社交媒体使用准则

Internal and external use of social media

<https://intranet2.siemens.com.cn/cp/socialmedia/socialMedia.aspx>

关于媒体采访、公开发言的相关规定

Regulation for press talks and public speech

https://info.siemens.com.cn/industry/SINET/English/AboutUs/OrgUnits/rc-cn_cc/AboutUs/BPGroup/RegulationForPressTalkAndPublicSpeech/SLC_C_28%20Regulation%20for%20press%20talks%20and%20public%20speech_20211116_signed.pdf

西门子商业行为准则

Siemens Business Conduct Guidelines

<https://info.siemens.com.cn/new/compliance/rco/BCG.html>

西门子园区进出管理规定

Access Control Regulation

<https://soc.siemens.cloud/c/fn2v95>

公司信息保护

Protection of Corporate Information

<https://siemens.sharepoint.com/teams/RC-CN-CYS>

假期规定

Leave Regulation

https://cms.siemens.com.cn/hrchina/HR%20Intranet/SLC%20Employee/Policy%20Regulation/Siemens_Leave_Regulation.pdf

西门子中国工作时间管理条例

Siemens China Working Hours Regulations

https://cms.siemens.com.cn/hrchina/HR%20Intranet/SLC%20Employee/Policy%20Regulation/Working_Hour_Regulation.pdf

奖金目标设定准则（包含不同财年的准则）

Incentive Target Setting Guideline (including guidelines for different fiscal years)

<https://info.siemens.com.cn/SLCWeb/corporateDepartments/HR/HR%20Intranet/CompensationAndBenefits/IncentiveTargetSetting.html>

合规相关规定

Compliance Regulations

<https://info.siemens.com.cn/new/compliance/rco/circulars.html>

差旅与费用政策

Travel and Expense Policy

https://cms.siemens.com.cn/hrchina/HR%20Intranet/SLC%20Employee/Policy%20Regulation/SC_230_Country_China_Bilingual.pdf

西门子中国员工发明奖励和报酬政策

Siemens China Employee Inventor Reward and Remuneration regulations

<https://soc.siemens.cloud/c/2jz4ut>

弹性福利计划手册

Flexible Benefit Plan Handbook

<https://info.siemens.com.cn/SLCWeb/corporateDepartments/HR/HR%20Intranet/CompensationAndBenefits/FlexibleBenefit.html>

西门子员工隐私通知

Siemens Employee Privacy Notice

https://siemens.sharepoint.com/teams/Findit00000001/compliance/findIT_LC_C_DP_5592.pdf

